ORDINANCE NO. 520

FILED

2007 MAR -8 P 3:00

An Ordinance Vacating An Alley Beginning at the Northwest Corner of Lot 1 run thence South to the Southwest Corner of Lot 6, run thence West to the Southeast Corner of Lot 7, run thence North to the Northeast Corner of Lot 12 run thence East to the point of beginning, located in Block 1 of McNeil's Addition.

BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF RECTOR, ARKANSAS, AS FOLLOWS, TO-WIT:

WHEREFORE, a petition was duly filed with the City Council of the City of Rector, Arkansas, on the 5th day of March, 2007, asking the City Council to vacate and abandon all that portion of an alley designated as an alley Beginning at the Northwest Corner of Lot 1 run thence South to the Southwest Corner of Lot 6, run thence West to the Southeast Corner of Lot 7, run thence North to the Northeast Corner of Lot 12 run thence East to the point of beginning, located in Block 1 of McNeil's Addition.

WHEREAS, after due notice as required by law, the City Council has, at the time and place mentioned in the notice, heard all persons desiring to be heard on the question and has ascertained that an alley or the portion thereof, hereinbefore described, has heretofore been dedicated to the public use as a alley herein described; that said alley has not been actually used by the public generally for a period of at least five years subsequent to the filing of the plat; that all the owner of the property abutting upon the portion of an alley to be vacated has filed with the Council her written consent to such abandonment; and the public interest and welfare will not be adversely affected by the abandonment of such street.

NOW THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF RECTOR, ARKANSAS, AS FOLLOWS, TO-WIT:

SECTION 1. The City of Rector, Arkansas, hereby releases, vacates and abandons all its rights, together with the rights of the public generally, in and to an alley designated as follows:

Beginning at the Northwest Corner of Lot 1 run thence South to the Southwest Corner of Lot 6, run thence West to the Southeast Corner of Lot 7, run thence North to the Northeast Corner of Lot 12 run thence East to the point of beginning, located in Block 1 of McNeil's Addition.

SECTION 2. A copy of the ordinance duly certified by the City Recorder shall be filed in the Office of the Circuit Clerk and Ex-Officio Recorder of the county and recorder in the deed records for the Eastern District of Clay County.

SECTION 3. This ordinance shall take effect and be in force from and after its passage.

Passed and approved by the City Council of the City of Rector, this 5th day of March, 2007.

Ron Kemp, Mayor

Attest:

City Clerk

I certify that this instrument was filed on 03/09/2007 09:12:16 and recorded in MISC-E Book 25 at pages 247 - 248 Janet Luff Circuit Clerk - Clay County, AR By: [illegible] D.C.

NOTICE OF HEARING

Notice is hereby given that there has been filed in the Office of the City Recorder, Rector, Arkansas, a petition purporting to be signed by all the abutting land owner by and through her attorney, C. Joseph Calvin, to vacate a certain alley within the City of Rector, Arkansas.

The petitioner states that she is the sole abutting land owner and that the said alley has not been used for a period of five years from the date of this notice.

> Beginning at the Northwest Corner of Lot 1 run thence South to the Southwest Corner of Lot 6, run thence West to the Southeast Corner of Lot 7, run thence North to the Northeast Corner of Lot 12 run thence East to the point of beginning, located in Block 1 of McNeil's Addition.

Petitioner: Pauline Crockett, Trustee of the Marital Trust under the Robert Crockett and Pauline Crockett, Joint Revocable Trust, dated December 29, 1986.

The City Council of the City of Rector has set the 5th day of March, 2007, the regular scheduled City Council Meeting, for a hearing on the above styled matter.

Dated: 2/26/07

Lowell McKenney
City Recorder

IN THE MATTER OF THE VACATING OF A
STREET IN THE CITY OF RECTOR, ARKANSAS
LOCATED IN THE McNIEL'S ADDITION

Comes now the petitioner, Pauline Crockett, Trustee of the Marital Trust under the Robert Crockett and Pauline Crockett, Joint Revocable Trust, dated December 29, 1986, by and through her attorney, C. Joseph Calvin, and for her relief requests that the City of Rector vacate a certain alley within the city limits. The petitioner state that she is the sole abutting landowner on each side of the proposed property and that said alley has not been used for a period of five years from the date of this petition.

> Beginning at the Northwest Corner of Lot 1 run thence South to the Southwest Corner of Lot 6, run thence West to the Southeast Corner of Lot 7, run thence North to the Northeast Corner of Lot 12 run thence East to the point of beginning, located in Block 1 of McNeil's Addition.

WHEREFORE, petitioner prays that she be granted an ordinance vacating the above described alley and further that the ordinance be filed with the clerk of said county and that ownership of said street shall revert to the abutting land owner to the center of said alley.

DATED: 2/26/07

C. JOSEPH CALVIN
Attorney at Law
P.O. Box 196
201 East Ninth Street
Rector, Arkansas 72461
Phone (870) 595-3504

Attorney for the Petitioner